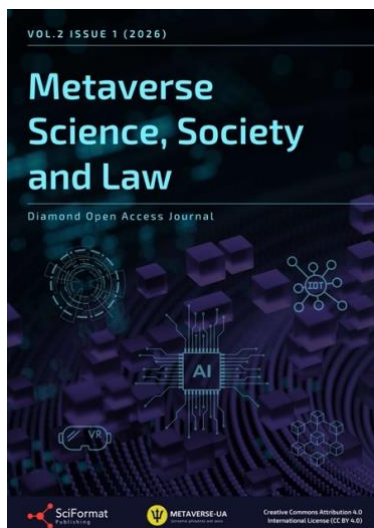




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ADMINISTRATIVE AND LEGAL REGULATION OF THE USE OF ARTIFICIAL INTELLIGENCE IN THE ACTIVITIES OF LAW ENFORCEMENT AGENCIES

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ABSTRACT

The scientific study “Administrative and Legal Regulation of the Use of Artificial Intelligence in the Activities of Law Enforcement Agencies” examines the theoretical-legal and administrative-legal foundations for the use of artificial intelligence in the activities of law enforcement agencies of Ukraine. It is substantiated that the digital transformation of public administration in the field of ensuring the national security of the state, as well as the need to enhance the effectiveness of preventive and law enforcement activities, determine the active introduction of intelligent technologies into the activities of law enforcement agencies in the sphere of state security of Ukraine.

It has been established that artificial intelligence in this field may be used for the analytical processing of information, the identification of patterns, risk forecasting, the automation of certain procedures, support for managerial decision-making, as well as for increasing the speed of response aimed at the prevention of offenses and threats to the state security of Ukraine.

It has been proved that the use of artificial intelligence in law enforcement activity is of a dual nature: on the one hand, it contributes to improving the effectiveness of the work of law enforcement agencies; on the other hand, it gives rise to risks for the individual, his or her life and health, honor and dignity, inviolability, and security, which are recognized in Ukraine as the highest social value, as well as for the protection of sovereignty and territorial integrity and the protection of the state border of Ukraine [1].

It has been clarified that the current legislation of Ukraine does not contain a coherent special regulatory legal act that would comprehensively govern the use of artificial intelligence in the activities of law enforcement agencies in the sphere of state security. Therefore, such regulation is currently carried out in a fragmented manner through the provisions of constitutional, administrative, information, and criminal procedural legislation of the state.

KEYWORDS

Artificial Intelligence, Law Enforcement Agencies, Administrative and Legal Regulation, Public Administration, Digitalization, Protection of Sovereignty and Territorial Integrity, Protection of The State Border of Ukraine, Protection of State Security

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Introduction

The current stage of development of the state and society is characterized by the rapid spread of digital technologies, which are becoming ever more deeply integrated into the sphere of public administration. One of the most notable manifestations of such transformation is the introduction of artificial intelligence systems capable of automatically processing significant volumes of information, identifying hidden relationships between data, generating forecasts, supporting decision-making, and optimizing the performance of managerial functions in the field of state security of Ukraine [2]. For law enforcement agencies, these capabilities are of particular importance, since their activities are associated with the need to respond promptly to threats, combat crime, analyze complex bodies of information, and ensure public security [3].

The relevance of the topic is обусловлена by the fact that the introduction of artificial intelligence into the activities of law enforcement agencies is no longer merely a technological prospect, but is becoming a component of the modern model of public administration in the sphere of law enforcement activity. At the official level, Ukraine is currently developing the Strategy for the Development of Artificial Intelligence through 2030 and implementing the “Concept of Reform of Administrative Law of Ukraine,” which demonstrates the integration of such technologies into key areas, including public administration, the protection of state security, infrastructure, and other socially significant fields [10].

At the same time, the use of artificial intelligence in law enforcement activity cannot be regarded exclusively as a technical tool. It concerns the application of technologies in a sphere directly connected with interference in the domain of human rights and freedoms and their guarantees, which determine the content and direction of the activity of the state [1].

Contemporary international approaches are dominated by the idea that any implementation of artificial intelligence in the activities of state bodies must be carried out on the basis of the rule of law, the principle of legality, respect for human rights, human oversight, transparency, accountability, safety, and non-discrimination [8]. In addition, Ukrainian legislation entrusts specially designated law enforcement agencies, within their defined competence, with the protection of state sovereignty, the constitutional order, territorial integrity, the economic, scientific-technical, and defense potential of Ukraine, the lawful interests of the state, and the rights of citizens from intelligence-subversive activity by foreign special services, as well as with the prevention and detection of crimes against peace and the security of humankind, terrorism, corruption, and organized criminal activity in the sphere of governance and the economy [1].

Of particular importance for understanding this topic is the experience of the European Union. Regulation (EU) 2024/1689, known as the AI Act, has established a risk-based approach to the regulation of artificial intelligence systems. It defines categories of prohibited practices, high-risk systems, and requirements concerning transparency, risk management, control, and supervision [7].

For Ukraine, this issue is of particular significance in view of its European integration course, the development of the state’s technological agenda, and the need to modernize the security sector. At the same time, current Ukrainian legislation still does not contain a special comprehensive act devoted specifically to the use of artificial intelligence in the activities of law enforcement agencies in the sphere of protecting the national security of Ukraine [10].

The existing regulation is carried out through the Law of Ukraine “On the National Police,” the Law of Ukraine “On Information,” the Law of Ukraine “On Personal Data Protection,” and the Law of Ukraine “On State Protection of Court Employees and Law Enforcement Officers.” At the same time, the implementation of reform processes in the sphere of law enforcement activity in Ukraine and the regulation of the status of law enforcement agencies in the Constitution of Ukraine require, first and foremost, clarification of the essence of the term “law enforcement agencies” and identification of their functional purpose [6]. It is therefore not accidental that the issue of law enforcement agencies is traditionally attributed mainly to the subject matter of administrative law. Thus, contemporary Ukrainian administrative law identifies from 17 to 80 law enforcement

agencies, depending on the specific meaning attached to the concept of the “law enforcement function” and the classification criteria based upon it [13].

Despite the existence of a significant number of scholarly works devoted to the issues of administrative and legal regulation of the use of artificial intelligence in the activities of law enforcement agencies, this subject matter still has not received sufficiently full and comprehensive coverage. Certain aspects thereof have become the subject of scientific research by such scholars as V. B. Averianov, O. M. Bandurka, V. M. Bevzenko, V. V. Halunko, I. P. Holosnichenko, O. Yu. Drozd, O. O. Kyrbiatiev, R. A. Kaliuzhnyi, V. K. Kolpakov, A. T. Komziuk, O. V. Kostenko, V. A. Lipkan, O. M. Muzychuk, O. I. Nikitenko, O. H. Predmestnikov, L. H. Chystokletov, S. H. Stetsenko, V. Ya. Tatsii, and others.

The purpose of the article is to carry out a comprehensive analysis of the theoretical and legal foundations and the specific features of the administrative and legal regulation of the use of artificial intelligence in the activities of law enforcement agencies in the sphere of ensuring state security, as well as to formulate proposals for improving national legislation in this area.

Part 1. Theoretical and Legal Foundations for the Use of Artificial Intelligence in the Activities of Law Enforcement Agencies

Artificial intelligence, in its modern understanding, should be regarded not merely as a set of software solutions, but as a comprehensive technological instrument capable of performing functions traditionally associated with human intellectual activity: recognition, classification, forecasting, recommendation, modeling of decision-making options, and the automated detection of anomalies and patterns [7].

In the activities of law enforcement agencies, artificial intelligence acquires significance as an instrument of information and analytical support. Its use is possible in several principal areas: the analysis of large volumes of data on criminogenic processes; the identification of links between events, persons, and objects; support for investigative activities; automation of the primary sorting of reports and appeals; recognition of documents, license plates, images, or speech; detection of suspicious behavior in cyberspace; prediction of the risks of repeated offending; and preparation of analytical reports for managerial decision-making [3]. At the same time, even given its broad functional capabilities, artificial intelligence should not be equated with an autonomous subject of public authority. Its role in law enforcement activity must remain auxiliary, while the final legally significant expression of will must belong to an authorized official [12].

This position also follows from the general purpose of law enforcement activity. The Law of Ukraine “On the National Police” defines the police as a central executive authority that serves society by ensuring the protection of human rights and freedoms, combating crime, maintaining public security and order, and protecting the sovereignty and territorial integrity of Ukraine, as well as the protection of the state border of the country [3].

Theoretically, artificial intelligence in the law enforcement sphere may be considered in three interrelated dimensions. First, as an instrument of managerial optimization that makes it possible to process information more quickly and to use human and technical resources more rationally. Second, as a means of increasing the effectiveness of prevention and response to offenses. Third, as an object of legal regulation that itself requires the establishment of limits, procedures, criteria of admissibility, and control mechanisms [7]. In this context, fundamental importance attaches to the principles on which the use of artificial intelligence in the activities of law enforcement agencies must be based. First and foremost, this concerns the principle of legality. Any use of artificial intelligence by public authorities must rely on a clear regulatory basis defining its purpose, subjects, limits, procedures, safeguards for the protection of individual rights, and mechanisms of appeal [1].

The next principle is the priority of human rights. The use of artificial intelligence in law enforcement activity must not replace constitutional guarantees and international standards for the protection of rights and freedoms [8]. The Law of Ukraine “On Personal Data Protection” directly establishes the legal foundations for the processing of personal data, while the Law of Ukraine “On Information” defines the general rules governing the handling of information and its protection [4]. This means that a law enforcement agency may not use an artificial intelligence system solely because it is technically efficient; it is necessary that its use be lawful, necessary, and proportionate [1].

No less important is the principle of human oversight. Both European ethical guidelines and UNESCO recommendations proceed from the premise that artificial intelligence should not displace ultimate human responsibility. A person must retain the ability to assess an algorithmic recommendation, reject it, verify its validity, and bear responsibility for the decision taken [9]. Particular significance also attaches to the principle of integrity and ethical conduct, as well as to the principles of respect for human rights and cultural diversity,

openness, and transparency. In the law enforcement sphere, situations are unacceptable in which a person is subjected to restrictions or heightened scrutiny by law enforcement bodies on the basis of an algorithm whose operating logic is entirely closed. Transparency does not necessarily mean mandatory disclosure of source code, but it does require the existence of understandable rules governing the functioning of the system, documentation of data sources, the possibility of verifying the influence of the system on decisions, and procedures for external or internal audit [12].

The principle of non-discrimination is likewise of a fundamental nature. Algorithmic systems trained on non-representative or biased datasets may reproduce or even intensify existing social distortions. In the law enforcement sphere, this may manifest itself in selective profiling, a disproportionately high level of attention to certain social groups, erroneous risk prediction, or the stigmatization of certain categories of persons [9]. For artificial intelligence systems used by law enforcement agencies, this means the mandatory requirement of technical reliability, protection against unauthorized interference, distortion of results, data leakage, manipulation, or model substitution [5].

Thus, the theoretical and legal foundations for the use of artificial intelligence in the activities of law enforcement agencies are formed at the intersection of administrative law, information law, legislation on personal data, cybersecurity, and international human rights standards [8]. In this field, artificial intelligence should be regarded not as an autonomous substitute for an official, but as an auxiliary instrument of public administration, the use of which is possible only under conditions of clear legal certainty, institutional oversight, and the real guarantee of human rights [12].

Part 2. Specific Features of the Administrative and Legal Regulation of the Use of Artificial Intelligence in the Activities of Law Enforcement Agencies

The administrative and legal regulation of the use of artificial intelligence in the activities of law enforcement agencies should be understood as a system of legal norms, principles, procedures, competences, and control mechanisms through which the state determines the permissible limits of the use of algorithmic technologies in the field of law enforcement and ensures their compliance with public interests and human rights [8].

The specific feature of such regulation lies in the fact that it must combine two tasks: to create conditions for the technological modernization of law enforcement activity and, at the same time, to restrain the risks of excessive state interference in an individual's private sphere [1]. This conclusion follows from the analysis of current legislation in the fields of policing, information, personal data, cybersecurity, and criminal procedure, as well as from the fact that the Strategy for the Development of Artificial Intelligence in Ukraine through 2030 is still only being officially formed [11].

The first element of such regulation is the definition of the competence of the bodies that may use the relevant technologies. A law enforcement agency is not entitled to use intelligent systems beyond the limits of its lawful powers. This means that any decision to introduce artificial intelligence must be connected with the functions of a specific body, and the procedure for using the relevant system must be established in a normative or local administrative act that does not contradict the law [3]. The second element is the legal regime governing information and data. Any artificial intelligence system in the law enforcement sphere operates through the collection, accumulation, storage, processing, and analysis of information [2].

The Law of Ukraine "On Information" establishes the general principles of lawful handling of information, while the Law of Ukraine "On Personal Data Protection" sets out the rules for the processing of personal data, the rights of data subjects, and guarantees of their protection [4]. In the sphere of law enforcement activity, this means that the introduction of artificial intelligence cannot be carried out without determining the legal grounds for data processing, the purpose of such processing, its scope, storage periods, access categories, and control procedures [4].

The third important element is the procedural admissibility of results obtained through the use of artificial intelligence. If an intelligent system is used in the course of analyzing evidentiary information, searching for digital traces, identifying objects, or forming analytical conclusions within criminal proceedings, the question arises as to their procedural status [6]. The Criminal Procedure Code of Ukraine does not grant artificial intelligence the status of an independent procedural subject, and therefore the results of its operation may have significance only as auxiliary material, which is evaluated by an authorized person and verified in accordance with the procedure established by law [6].

The fourth element of administrative and legal regulation consists of safety and cyber protection standards. Artificial intelligence systems used by law enforcement agencies process sensitive information and therefore must

be protected against interference, unauthorized access, distortion, substitution, or use for hostile purposes [5]. The Law of Ukraine “On the Basic Principles of Ensuring Cybersecurity of Ukraine” creates a general framework for the protection of national interests in cyberspace; however, with regard to specific solutions in the law enforcement sphere, detailed technical and organizational requirements are necessary, including audit, logging of actions, testing for resilience to manipulative influence, and control of data quality [5].

In order to understand the prospects for national regulation, it is important to take the European approach into account. The EU AI Act establishes a risk-oriented model: the higher the risk to safety and fundamental rights, the stricter the requirements imposed on the system [7]. In the sphere of law enforcement activity, a number of uses directly related to risk assessment, profiling, analysis of evidence, and the use of biometric technologies are expressly classified as high-risk [7].

The AI Act also provides for phased entry into application: general application begins on August 2, 2026, while the prohibitions, definitions, and requirements concerning AI literacy have applied since February 2, 2025, and certain rules concerning governance and general supervision have applied since August 2, 2025 [7]. Equally significant are the standards of the Council of Europe. The Council of Europe Framework Convention on Artificial Intelligence, Human Rights, Democracy and the Rule of Law has become the first binding international legal treaty in this field [8].

The international ethical dimension of regulation is further complemented by UNESCO instruments. The Recommendation on the Ethics of Artificial Intelligence, adopted in 2021, proceeds from the priority of human dignity, human rights, human oversight, transparency, proportionality, prevention of harm, safety, accountability, fairness, and non-discrimination [9]. At the level of national administrative law, particular attention should be paid to the procedure for adopting decisions on the introduction of artificial intelligence systems into the activities of law enforcement agencies. Such a decision cannot be purely technical or purely departmental in nature [1].

It must provide, at a minimum, for the definition of the legal purpose of application, a description of the system’s functionality, an assessment of the categories of data used, an analysis of risks to human rights, a mechanism of human oversight, the procedure for documenting decisions, the possibility of internal and external audit, rules of access to the results of algorithmic processing, storage periods for information, and the procedure for appealing actions carried out with the use of the system [12].

This is precisely where the specific nature of administrative and legal regulation lies: it must transform a technological possibility into legally permissible, procedurally defined, and controllable activity [8]. Without such an approach, artificial intelligence may become a source of non-transparent administration, where decisions formally remain human on the surface but are in fact determined by algorithmic recommendations, the logic of which is unknown to citizens, the courts, and even the official concerned [12].

A significant drawback of the current state of legal regulation in Ukraine is the absence of unified requirements for algorithmic accountability [10]. At present, the legislation does not contain a clear obligation to carry out an assessment of the impact of law enforcement artificial intelligence systems on human rights, does not establish special standards for maintaining logs of algorithmic actions, does not define the procedure for independent verification of models, and does not regulate the criteria of explainability of automated conclusions [11]. Moreover, in the context of the development of the digital environment, legal regulation cannot remain fragmented and situational, since this hinders the formation of a coherent model of electronic jurisdiction and the proper adaptation of legislation to new technological challenges [14].

Unlike the approach of the European Union, where high-risk systems are subject to fundamental rights impact assessment, developed supervision mechanisms, and special requirements for risk management, such procedures in Ukraine have not yet acquired proper formalization [7]. The issue of biometric technologies deserves separate attention. Law enforcement practice throughout the world demonstrates a high demand for facial recognition systems, video stream analysis, and remote identification. However, it is precisely such tools that are capable of interfering most intensively with private life and creating risks of mass surveillance [7].

The European approach proceeds from the premise that the use by law enforcement officers of real-time remote biometric identification in public places may be permissible only in narrowly defined cases and under a strict procedure [7]. The improvement of national administrative and legal regulation may be envisaged in several directions. First, it is advisable to legislatively enshrine the basic definitions and classification of artificial intelligence systems that may be used by law enforcement agencies. Second, it is necessary to define the list of high-risk applications and the special conditions of their admissibility. Third, a mandatory human rights impact assessment should be introduced prior to the deployment of such systems [7].

Fourth, requirements should be established regarding data quality, audit, testing, cyber resilience, and logging of all significant actions of the system [5]. Fifth, real human oversight must be guaranteed, as well as effective means of administrative and judicial appeal against decisions adopted with the use of artificial intelligence [1]. Sixth, it is advisable to regulate the issues of professional training of personnel and increasing the level of AI literacy within the law enforcement system [7]. In summary, it should be noted that the administrative and legal regulation of the use of artificial intelligence in the activities of law enforcement agencies cannot be reduced merely to technical instructions or general declarations about digitalization. It must be comprehensive, multi-level, and based on a combination of national legislation, international standards, and procedural guarantees [8]. Only under such conditions will artificial intelligence become not a source of new risks, but an effective instrument for strengthening law and order and public trust in the law enforcement system [12].

Conclusions

Thus, the use of artificial intelligence in the activities of law enforcement agencies in the sphere of ensuring and protecting the national security of Ukraine is a natural consequence of the digital transformation of public administration and the development of the information society. Artificial intelligence systems are capable of significantly increasing the effectiveness of the analytical, preventive, investigative, and organizational activities of law enforcement agencies, facilitating faster information processing, improving the quality of managerial decisions, and strengthening the capacity of the state to respond to contemporary security challenges.

At the same time, the law enforcement sphere is among the most sensitive areas for the application of artificial intelligence, since it is associated with the risks of restricting human rights, interfering with private life, processing personal data, and using profiling and automated recommendations that may affect a person's legal status. For this very reason, uncontrolled or purely technocratic implementation of algorithmic systems in this field is unacceptable. The conducted analysis gives grounds to assert that Ukraine still lacks a coherent system of special legal regulation of the use of artificial intelligence in the activities of law enforcement agencies. The current regulation is fragmented in nature and is based on the provisions of legislation on the police, information, personal data, cybersecurity, and criminal procedure, while the official strategy for the development of artificial intelligence is still at the stage of formation.

European and international approaches demonstrate that the most effective regulatory model is a risk-based approach, under which the degree of legal requirements depends on the potential impact of the system on security, freedoms, and fundamental human rights. For Ukraine, the standards of the European Union's AI Act, the Council of Europe Framework Convention on Artificial Intelligence, and UNESCO's Recommendation on the Ethics of Artificial Intelligence are of particular importance, since they form a modern guideline for law-making in this field.

The prospects for improving national regulation lie in the adoption of special provisions on the use of artificial intelligence by law enforcement agencies, the definition of categories of high-risk systems, the establishment of mandatory human rights impact assessments, and the introduction of procedures for audit, logging, human oversight, cyber protection, and effective appeals against algorithmically supported decisions. Only if technological development is combined with the principles of legality, proportionality, transparency, security, accountability, and non-discrimination will the use of artificial intelligence in law enforcement activities comply with the requirements of a democratic state governed by the rule of law.

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